

最终用户许可协议

END USER LICENSE AGREEMENT

请注意，只要您下载、复制游戏的任何部分和/或以其他方式使用它，或者开始参与该游戏过程，您必须接受此最终用户许可协议，并确认无限制地同意位于以下地址的游戏“florr.io”(<https://florr.io>)的所有条件。

ATTENTION! YOU ACCEPT THIS END USER LICENSE AGREEMENT AND CONFIRM YOUR CONSENT WITH ALL ITS CONDITIONS WITHOUT LIMITATIONS CONCERNING THE GAME "florr.io" LOCATED AT THE ADDRESS: <https://florr.io> IF YOU DOWNLOAD, COPY ANY PART OF THE GAME AND (OR) USE IT BY ANY OTHER WAY AND (OR) IF YOU STARTED TO PARTICIPATE IN THE GAME PROCESS IN THIS GAME.

本最终用户许可协议（以下简称“协议”）规定了“M28 Games LLC”有限责任公司（以下简称“许可方”）与您，作为游戏许可证持有人（以下简称“被许可方”），在游戏相关事宜上的关系。

This End user license agreement (hereinafter referred to as the "Agreement") governs the relationship between the Limited Liability Company "M28 Games LLC", hereinafter referred to as "Licensor" and you, the Game Licensee (hereinafter referred to as "Licensee"), in relation to the Game.

1. 本协议中使用的术语

Terms used in this Agreement

1.1 **游戏**是一种在线互动电脑游戏，位于互联网上的 <https://florr.io>，它是一个计算机程序和一组数据、命令和生成的视听图像（以下简称为“数据”和“命令”），按顺序激活以通过游戏脚本提供给许可方以获得特定结果，无需支付费用（激活的数据和命令）或在支付费用后（未激活的数据和命令）。根据本协议规定的条款和条件，被许可方被许可方授予使用数据和命令（激活和未激活）的权利。许可方是游戏及其所有元素的必要权利的所有者，无论是单独还是组合。许可方有权使用、运营和分发游戏。

Game is an interactive computer game online, located on the Internet at: <https://florr.io> which is a computer program and a collection of data, commands and generated audiovisual images (hereinafter referred to as "data" and "commands"), activated sequentially to obtain a certain result by the Licensee provided by the Game script, without making a payment (activated data and commands) or after making a payment (non-activated data and commands). The rights to use data and commands (activated and non-activated) are granted by the Licensor to the Licensee under the terms and conditions specified in this Agreement. The Licensor is the owner of the necessary amount of rights to the Game and to all its elements, taken individually or in combination. The Licensor has the right to use, operate and distribute the Game.

为了确保本协议项下各方的权利和义务，被许可方在其计算机或个人设备上复制许可方预先确定的数据和命令集（如果游戏功能提供了“游戏客户端”），而其他数据和命令集（包括未激活的数据和命令）或在游戏客户端部分缺失的情况下，所有数据和命令集由许可方托管在由其和/或第三方运营的服务器上。

In order to ensure the rights and obligations of the parties arising under this Agreement, Licensee reproduces the set of data and commands predetermined by the Licensor on his computer or personal device (the "Game Client", if provided by the Game functionality), whereas the set of other data and commands (including those non-activated) or all data and commands in case of absence of the client part of the Game are hosted by the Licensor on the servers operated by him and/or third parties.

- 1.2 **游戏网站**是位于 <https://florr.io> 及其子域名地址的在线网站, 被许可方通过该网站获得许可方资源的访问权限, 包括被许可方使用游戏的权利。许可方通过游戏网站上的消息以及其他方式向被许可方提供必要的信息, 以便通知被许可方相关信息。

Game Website is an online site located at <https://florr.io> and at its subdomain addresses that give Licensee access to the Licensor's resources, including use of the Game by the Licensee. The Licensor places mandatory information for Licensees through messages on Game Website, as well as in other ways that allow to notify Licensees of such information.

- 1.3 **游戏资源 (资源)** 是所有与游戏相关的服务器、软件和/或数据库, 位于 <https://florr.io> 等域名或由许可方在游戏内分发的链接。

Game Resources (Resources) - all servers, any software and/or databases related to the Game, located, among other places, at the domain <https://florr.io> or via links distributed by the Licensor in the Game itself.

- 1.4 **许可方**是有限责任公司“M28 Games LLC”, 根据非独占许可证向被许可方授予使用游戏的权利, 并进行公开提供、分发、运营、维护、管理游戏。许可方是本协议的一方。

Licensor - Limited Liability Company "M28 Games LLC", which grants the Licensee the right to use the Game on the basis of a non-exclusive license and carries out making available to the public, distribution, operation, maintenance, administration of the Game. The Licensor is a Party to this Agreement.

- 1.5 **被许可方**是具备必要法律能力以订立本协议的个人, 并根据本协议被授予根据本协议使用游戏的权利。被许可方是本协议的一方。

Licensee is an individual who has the necessary legal capacity to enter into this Agreement and who, pursuant to this Agreement, is granted the right to use the Game in accordance with this Agreement. The Licensee is a Party to this Agreement.

- 1.6 **被许可方账户 (账户)** 是被许可方在游戏注册时创建的账户, 允许许可方进行账户处理, 并提供登录 (访问) 游戏的机会。

Licensee's Account (Account) is the Licensee's account created at the time of registration in the Game, allowing the Licensor to account each Licensee and to provide the opportunity to log in (to access) the Game.

- 1.7 **转让游戏使用权**是指许可方向被许可方授予使用游戏的权利, 根据本协议中规定的简单非独占许可证条款使用游戏。

Transfer of the Rights to Use the Game means granting the rights to the Licensee by the Licensor to use the Game on the terms of a simple non-exclusive license in the manner specified in this Agreement.

- 1.8 **非激活数据和命令的权利**是由被许可方以费用获取的权利, 允许游戏增加游戏内物品的数量, 包括通过游戏内的“商店”功能或其他方式。游戏内物品是游戏内的价值, 包括游戏内货币。

Rights to non-activated data and commands are the rights acquired by Licensee for a fee, allowing the Game to increase the number of in-game items, including through the "Shop" function inside the Game or in other ways. The in-game items are in-game values, including in-game currency of the Game.

- 1.9 **报酬**是许可方向被许可方收取的费用, 用于授予被许可方在本协议规定的范围内使用未激活的数据和命令的权利。报酬的金额由许可方确定, 并取决于授予被许可方使用的未激活数据和命令的数量。

Remuneration is a fee to the Licensor for granting the Licensee rights to use non-activated data and commands within the limits established by this Agreement. The amount of Remuneration is determined by the Licensor and depends on the volume of non-activated data and commands, the right of use of which is granted to the Licensee.

- 1.10 **游戏的客户端部分**是被许可方参与游戏所必需的软件，需要安装在被许可方的个人计算机和/或移动设备上，或者用于被许可方参与游戏。游戏的客户端部分由被许可方独立在个人计算机和/或设备上安装，通过输入并在游戏网站 <https://florr.io> 上注册。游戏的客户端部分可以由许可方和/或其授权人通过互联网和有形媒体进行分发。通过互联网分发的游戏客户端部分将免费提供给被许可方，并享有复制的权利，除非本协议另有规定。

The Client's part of the Game is the software necessary for Licensee's participation in the Game, which is to be installed on the personal computer and/or the mobile device of the Licensee, or to be used for the participation of the Licensee in the Game. The Client's part of the Game is installed by the Licensee independently on the personal computer and (or) the device by entering and registering on the Game website: <https://florr.io>. The Client's part of the Game may be distributed by the Licensor and/or its authorized persons, both via the Internet and on tangible media. The Client's part of the Game distributed on the Internet is provided to the Licensee free of charge, with the right to reproduce, unless otherwise provided by this Agreement.

- 1.11 **许可协议**是许可方与被许可方之间的本协议文本，包含授予使用游戏作为计算机程序的许可协议的所有必要和实质条款。游戏规则以及本协议中提及的其他文件应被视为本协议的附件和其组成部分。

License Agreement - the text of this Agreement between the Licensor and the Licensee, containing all the necessary and material terms of the License Agreement for granting the rights to use the Game as a computer program. Game Rules as well as other documents referred to in this Agreement should be considered as an annex to this Agreement and its integral part.

- 1.12 **游戏规则（规则）**是许可协议的附件，位于 <https://florr.io> 上的互联网上，规定了许可方对游戏的使用规则，以及被许可方在与游戏相关的行为上的限制。游戏规则可以由许可方随时更改，无需事先通知被许可方。许可方通过在游戏网站上发布信息来通知被许可方这些变更。在修改游戏规则后，被许可方继续使用游戏将被视为对这些变更的同意。

Game Rules (Rules) - The annex to the License Agreement, located on the Internet at: <https://florr.io>, regulating the rules of Licensee's use of the Game, limitations in the actions of the Licensee in relation to the Game. The Game Rules may be changed by the Licensor at any time without prior notice to Licensee. The Licensor notifies the Licensee about these changes by posting information on the Game Website. Licensee's continued use of the Game after the modification of the Game Rules is recognized by his consent to such changes.

2. 加入本协议的条件

Conditions of accession to this Agreement

- 2.1 在使用游戏之前，被许可方必须审阅本协议的文本，以及适用于游戏的所有规则和其他文件，这些文件可以在许可方在 <https://florr.io> 上的账户中自由获取。

Before using the Game, the Licensee is required to review the text of this Agreement as well as all the Rules applicable to the Game and other documents freely available in the Licensee's Account on the Internet at <https://florr.io>.

- 2.2 在审阅本协议后，许可方通过点击“Play”按钮或类似按钮加入（接受）本协议，这符合规定。

After reviewing this Agreement the Licensee joins (accepts) this Agreement by clicking the "Play" button or the like, which is within the meaning of Art.

- 2.3 如果没有证据证明其他情况，那么在游戏中被授权的人应被视为账户的合法用户，其获得账户的访问、使用和管理权。

The person that was authorized in the Game should be deemed to be the proper user of the Account, access to use and management of which was obtained as a result of the registration of the Account if there is no information confirming otherwise.

3. 协议的主体内容

Subject of the Agreement

- 3.1 根据本协议并在被许可方遵守其各自条款的情况下，被许可方被授予使用游戏作为软件（计算机程序）和/或数据库的权利，以简单的非独占许可证的条件，在本协议确定的限制范围内使用。

Under this Agreement and subject to Licensee's compliance with its respective terms, the Licensor grants the Licensee the right to use the Game as software (computer programs) and / or database under the terms of a simple non-exclusive license, within the limits determined by this Agreement.

- 3.2 被许可方根据本协议的条款获得使用已激活和未激活的数据和命令的权利。

The Licensee obtains the right to use activated and non-activated data and commands on the terms of this Agreement.

- 3.3 在许可方将非激活的数据和命令以游戏内货币的形式反映在被许可方在游戏中的账户上时，许可方被视为已履行授予使用非激活数据和命令的义务。从这一时刻起，被许可方根据本协议的条款获得使用相应数量的非激活数据和命令的权利，该数量与游戏内货币的数量相对应。

The Licensor's obligation to grant the rights to use non-activated data and commands is deemed to be performed by the Licensor at the time it reflects in-game values in the form of the in-game currency of the Game on the Licensee's Account in the Game. From this moment, the Licensee obtains the rights to use the volume of non-activated data and commands corresponding to the number of in-game values in the form of the Game's in-game currency on the terms of this Agreement.

- 3.4 非激活数据和命令的数量与游戏内货币的数量之间的比例由许可方确定。奖励金额与游戏内货币的数量之间的比例也由许可方确定。

The ratio of the volume of non-activated data and commands to the number of in-game values in the form of an in-game currency of the Game is determined by the Licensor. The ratio of the amount of reward to the number of in-game values in the form of in-game currency of the Game is determined by the Licensor.

- 3.5 支付报酬不是被许可方参与游戏的先决条件，并且在被许可方的喜好下进行。

Payment of the Remuneration is not a prerequisite for Licensee's participation in the Game and is carried out *durante bene placito* of the Licensee.

4. 游戏的使用限制

Limits of use of the Game

- 4.1 被许可方可以按照以下方式使用游戏：

The Licensee may use the Game as follows:

- 4.1.1 通过创建账户和游戏角色参与游戏，在参与游戏过程中更改游戏内容，但必须遵守游戏规则；
to participate in the Game by creating an Account and Game's character, to change the content of the Game during participation in the Game with the mandatory observance of the Game Rules;
- 4.1.2 通过在计算机上安装游戏的客户端部分（无论是个人电脑还是移动设备）参与游戏；
to reproduce the Client's part of the Game by installing it on a computer (both on a personal computer and/or on a mobile device) in order to participate in the Game;

- 4.1.3 使用激活的数据和命令来实现特定的游戏结果场景;
to use the activated data and commands to achieve a certain Game outcome scenario;
- 4.1.4 在支付许可方后, 激活非激活的数据和命令, 并使用它们, 包括以比在第 3 条款中指定的权利更快或以其他方式实现游戏情节确定的结果的选项;
to activate Non-activated data and commands after payment of the Remuneration to the Licensor and use them, including the option to achieve a result determined by the Game scenario more quickly or in some other way than by using the right specified in clause 3;
- 4.1.5 更改由许可方提供的游戏个人设置;
to make changes to the Game's personal settings provided by the Licensor;
- 4.1.6 本协议没有规定被许可方需要提供有关游戏使用情况的报告。
This Agreement does not make a provision for the Licensee to provide reports on use of the Game.

4.2 被许可方不得:

The Licensee may not:

- 4.2.1 以商业或非商业目的, 通过分发物质载体或在互联网上发布供特定人或无限人数下载的方式, 分发游戏的客户端部分或其副本;
distribute the Client's part of the Game or its copies for commercial or non-commercial purposes either by distributing material carriers with it or by posting it on the Internet for downloading by certain persons or an unlimited number of persons;
- 4.2.2 将游戏翻译成其他语言;
translate the Game into other languages;
- 4.2.3 以商业目的分发游戏的任何元素, 包括游戏的图形、音频、音视频表现形式;
distribute any elements of the Game for commercial purposes, including graphic, audio, audiovisual representations of the Game;
- 4.2.4 以商业或非商业目的, 将未激活的数据和命令的使用权转让给第三方, 包括许可方为获得报酬而授予被许可方的游戏角色、游戏账户和其他未明确允许的对象, 并传播有关执行此类操作意图的信息;
distribute for commercial or non-commercial purposes, transfer to third parties the right to use non-activated data and commands granted to the Licensee for the Remuneration, game characters, game account and other objects not expressly permitted by the terms of this Agreement, and disseminate information on intentions to perform such actions;
- 4.2.5 通过签订子许可协议或其他方式, 将被许可方在本协议第 1 条中定义的使用游戏的权利转让给其他许可方或第三方;
transfer the Licensee's rights to use the Game, as defined in the article 1 of this Agreement, to other Licensees or to third parties through the conclusion of a sub-license agreement or otherwise;
- 4.2.6 以本协议、游戏规则不支持和其他超出正常游戏过程的方式使用游戏, 包括利用游戏代码错误和在被许可方使用游戏过程中出现的其他漏洞, 并违反游戏原则和本协议的行为;
use the Game in other ways not provided for in this Agreement, the Game Rules and other means that go beyond the normal gameplay process, including use of Game code errors and other gaps that arise during the use of the Game by the Licensee and contrary to the principles of the Game and this Agreement;
- 4.2.7 使用游戏进行创业和/或其他能为被许可方带来实质利益的活动, 尤其禁止在游戏中发布与业务相关的广告和/或其他广告, 和/或进行其他能为被许可方带来实质利益的活动。
use the Game to carry out entrepreneurial and (or) other activities that bring material benefits to the Licensee, in particular, it is prohibited to place advertisements and (or) other advertisements related to business and (or) conduct other activities in the Game that bring material benefit to the Licensee;
- 4.2.8 使用其他用户的账户;
use the Account of another user;

- 4.2.9 转让或以其他方式转移账户，获取另一用户的账户，包括通过交换或赠与；
alienate and otherwise transfer the Account, acquire the Account of another user, including through exchange or gift;
- 4.2.10 使用自动化脚本收集信息或与游戏进行其他类型的交互；
use automated scripts to collect information or other kind of interaction with the Game;
- 4.2.11 利用其他用户的信息发送未经请求的信息（垃圾邮件）；
use information of other users to send unsolicited information (spam);
- 4.2.12 在未经其权利所有者同意的情况下，在游戏中提供知识产权物体；
make available objects of intellectual property in the Game without the consent of their rightsholders;
- 4.2.13 在未经第三方同意的情况下，在游戏中分发个人信息和个人数据，包括家庭地址、电话和护照详细信息；
distribute personal information and personal data of third parties in the Game without their consent, including home addresses, telephones and passport details;
- 4.2.14 在游戏中分发商业提议、宣传和任何其他侵入性信息，除非许可方允许；
distribute commercial offers, propaganda and any other intrusive information in the Game, except as permitted by the Licensor;
- 4.2.15 在游戏中分发冒犯或贬低其他用户或第三方的荣誉和尊严的材料，以及分发指向此类材料的链接；
distribute materials in the Game that offend or humiliate the honor and dignity of other users or third parties as well as distribute links to such materials;
- 4.2.16 在游戏中分发和以其他方式使用淫秽、辱骂和冒犯性的词语和短语，包括在用户名称（昵称）中；
distribute and otherwise use obscene, abusive and offensive words and phrases in the Game, including in the User's name (nickname);
- 4.2.17 托管恶意程序或包含或可能包含此类程序的资源链接；
host malicious programs or links to resources that contain or may contain such programs;
- 4.2.18 在游戏中分发具有色情或色情性质的材料，以及链接到这些材料；
distribute materials of a pornographic or erotic nature in the Game as well as links to them;
- 4.2.19 在游戏中发布威胁，并发表对暴力和其他非法行为的呼吁；
issue threats in the Game as well as make calls for violence and other illegal actions;
- 4.2.20 在游戏中分发具有暴力、残忍、种族、族际或宗教冲突要素的材料，以及链接到这些材料；
distribute materials with elements of violence, cruelty, racial, interethnic or interreligious strife in the Game as well as links to such materials;
- 4.2.21 在游戏中宣传和展示纳粹、极端主义或其他等同符号、象征和其他物体；
publicize and demonstrate in the Game a Nazi, extremist or other equated attribute, symbolism and other objects;
- 4.2.22 在游戏中宣传犯罪和其他非法活动，以及发布进行非法行为的手册；
publicize in the Game criminal and other unlawful activities, as well as post manuals for the commission of unlawful acts;
- 4.2.23 在游戏中传播根据许可方的看法，违反法律、道德和伦理或不受欢迎的其他信息；
disseminate any other information in the Game that, in the opinion of the Licensor, violates the law, morality and ethics or is undesirable;
- 4.2.24 进行犯罪和其他非法行为。
commit criminal and other unlawful acts.

被许可方违反本协议条款将成为终止向被许可方授予使用游戏权利的依据，包括未激活的数据和命令。

The Licensee's violation of the terms of this Agreement is the basis for termination of granting the Licensee the rights to use the Game, including non-activated data and commands.

5. 许可方的义务

Obligations of the Licensor

许可方承担以下义务：

The Licensor assumes the following obligations:

- 5.1 在本协议规定的条件下，为被许可方提供使用游戏权利的可能性；
arrange for the Licensee the possibility to use the right to use the Game on the terms and conditions set forth in this Agreement;
- 5.2 通过在游戏网站上发布信息，通知被许可方有关本协议条款的变更；
notify the Licensee by publishing information on the Game Website about the changes in the terms of this Agreement;
- 5.3 除非本协议另有规定，免费向被许可方授予通过互联网从游戏网站使用激活的数据和命令的权利；
grant the Licensee the right to use activated data and commands via the Internet from the Game Website free of charge unless otherwise provided by this Agreement;
- 5.4 以报酬为代价，授予被许可方使用未激活的数据和命令的权利。
grant the Licensee the right to use the non-activated data and commands for the Remuneration.

6. 许可方的权利

Rights of the Licensor

许可方有权：

The Licensor has the right to:

- 6.1 随时单方面限制、扩展、修改本许可协议的内容和/或将游戏作为计算机程序的内容，无需提前通知被许可方；
at any time, unilaterally restrict, expand, modify the contents of this License Agreement and (or) the Game as a computer program without prior notice to the Licensee;
- 6.2 暂停或修改游戏作为计算机程序，更改其许可条件，无需提前通知被许可方；
suspend or modify the Game as a computer program, change the conditions for its licensing without prior notice to the Licensee;

- 6.3 随时修改、删除被许可方在游戏网站和许可方拥有和/或管理的其他域名上发布的任何信息，包括被许可方的声明和广告；
at any time modify, delete any information placed by the Licensee on the Game Website and on other domain names owned and/or administered by the Licensor, including statements and advertisements of the Licensee;
- 6.4 随时单方面暂停、限制和/或终止与游戏作为计算机程序相关的本许可协议，适用于任何或所有被许可方，包括如果被许可方未遵守本协议或游戏规则的条款；
at any time suspend, restrict and/or terminate this License Agreement unilaterally with respect to the Game as a computer program for any or all Licensees, including if the Licensee fails to comply with the terms of this Agreement or the Game Rules;
- 6.5 确定并存储有关被许可方 IP 地址的信息，使用在被许可方个人计算机上放置的技术信息文件(cookie)，以收集统计信息并识别被许可方；
establish and store information about Licensee's IP addresses, use the files of technical information (cookies) placed on the personal computer of the Licensee in order to collect statistical information and identify the Licensee;
- 6.6 向被许可方发送与游戏相关的信息消息或技术信息；
send information messages to the Licensee or technical information related to the Game;
- 6.7 在游戏过程中对被许可方进行评注，警告，通知，告知他们未遵守许可条件以及游戏规则或本协议的其他条款。许可方在游戏过程中发出的指示对被许可方具有强制执行力；
during the game process make remarks to the Licensees, warn, notify, inform them of non-compliance with the licensing terms as well as with the Game Rules or other terms of this Agreement. Instructions of the Licensor that have been given during the game process are mandatory for execution by the Licensee;
- 6.8 随时修改、补充、编辑游戏及其任何部分，包括游戏的客户端部分，无需提前通知被许可方；
at any time modify, supplement, edit the Game, any of its parts, including the Client's part of the Game, without any prior notification to the Licensee;
- 6.9 采取法律不禁止的措施，以保护自己在游戏方面的知识产权。
take measures not prohibited by law for the protection of own intellectual rights in relation to the Game.

7. 许可方责任限制

Limitation of Liability of the Licensor

- 7.1 被许可方使用许可方的资源、游戏，包括游戏中的游戏客户端部分（如有）均由被许可方自行承担风险。游戏及其使用权按现状授予，不附带任何担保。
Licensee uses the Licensor's Resources, the Game, including the Client's part of the Game (if any) at its own risk. The Game and the rights to use it are granted "as is".
- 7.2 许可方对被许可方或第三方可能存在的非法行为概不负责。
The Licensor is not and shall not be liable for possible unlawful actions of the Licensee or third parties.

- 7.3 许可方对被许可方在游戏中失去对被许可方账户的访问权限（包括登录信息、密码以及被许可方参与游戏所需的其他信息）不承担责任。

The Licensor shall not be liable for Licensee's loss of access to the Licensee's Account in the Game (loss of login, password, other information necessary for Licensee's participation in the Game).

- 7.4 许可方对于被许可方的互联网接入的不足, 以及对为被许可方提供互联网接入服务的互联网服务提供商的服务质量不负责任。

The Licensor is not responsible for the lack of Internet access for the Licensee, for the quality of the services of the Internet communication providers with which the Licensee has concluded agreements for the provision of Internet access services.

- 7.5 除非适用法律另有明文规定, 许可方不会在本协议因任何原因中止或终止时, 对被许可方支付的报酬及相关费用予以补偿。

The Licensor does not reimburse the Licensee for the costs associated with the payment of the Licensee's Remuneration, including in the event of the suspension or termination of this Agreement for any reason, unless otherwise expressly provided by applicable law.

- 7.6 许可方对于被许可方在游戏中创建被许可方账户时未完整、不准确、错误地标明其数据不负责任。

The Licensor is not liable for incomplete, inaccurate, incorrect designation by the Licensee of its data when creating the Licensee's Account in the Game.

- 7.7 许可方对于被许可方在游戏过程中参与游戏活动而导致游戏价值的丧失不承担责任。

The Licensor shall not be liable for the loss of game values resulting from participation in the Game in the course of the game process by the Licensee.

- 7.8 许可方不保证:

The Licensor does not guarantee that:

- 7.8.1 游戏能够满足被许可方的主观要求和期望;

the Game will meet the subjective requirements and expectations of the Licensee;

- 7.8.2 在许可方的资源上进行的 game 过程, 以及使用游戏的权利的授予将连续、迅速、没有技术故障、可靠且无错误进行;

the game process on the Licensor's Resources, as well as the grant of the rights to use the Games will proceed continuously, quickly, without technical failures, reliably and without errors;

- 7.8.3 使用游戏可能获得的结果将是无误差的;

the results that can be obtained by using the Game will be free of mistakes;

- 7.8.4 游戏将在全天候、特定时间点或任何时间段内可用并可使用。

The Game will be available and can be used around the clock, at a particular point in time or for any period of time.

- 7.9 许可方对于因以下原因而导致被许可方或其他第三方直接或间接受到的损害概不负责:

The Licensor shall not be liable for the occurrence of direct or indirect damage to the Licensee or other third parties caused as a result of:

- 7.9.1 使用或无法使用被许可方的资源;

the use or inability to use the Licensor's Resources;

7.9.2 任何第三方未经授权访问被许可方的个人信息, 包括被许可方的账户或游戏中被许可方的个人账户;

unauthorized access of any third parties to the Licensee's personal information, including the Licensee's Account or Licensee's personal account in the Game;

7.9.3 任何第三方在许可方的资源上所作的陈述或行为。

statement or behavior of any third party made on the Licensor's Resources.

7.10在任何情况下, 许可方对被许可方的责任限制为 1,000 (一千) 卢布, 除非适用法律明文规定其他。

In all circumstances, the Licensor's liability to Licensee is limited to 1,000 (one thousand) rubles, unless otherwise expressly provided by applicable law.

7.11许可方无义务向被许可方提供任何证据、文件和其他证明, 证明被许可方违反了协议条款, 导致协议被暂停或终止。

The Licensor is not obliged to provide the Licensee with any evidence, documents and other evidence that the Licensee violated the terms of the Agreement as a result of which the Agreement was suspended or terminated.

7.12被许可方理解、接受并同意游戏可能包含各种音频和/或视频效果, 在某些情况下可能导致对患有癫痫或其他神经紊乱的人的不适, 被许可方保证自己不患有这些疾病, 并在患有这些疾病的情况下承诺不使用游戏。

The Licensee understands, accepts and agrees that the Game may contain various sound and/or video effects that, in certain circumstances, may cause aggravation of ill conditions in persons prone to epileptic or other nervous disorders, and the Licensee guarantees that he/she does not suffer from these disorders and in case of these disorders the Licensee undertakes not to use the Game.

7.13被许可方接受并同意, 定期长时间 (连续) 使用个人电脑或移动设备可能导致身体状况的各种并发症, 包括视力障碍、脊柱侧弯、各种形式的神经症和对身体的其他负面影响。被许可方保证自己将仅在合理的时间内使用游戏, 并在需要时休息或采取其他措施以防止身体状况的发生, 如果这些措施被建议或开具给被许可方。

The Licensee accepts and agrees that regular long-term (continuous) use of personal computer or mobile device can cause various complications of the physical condition, including impaired vision, scoliosis, various forms of neuroses and other negative effects on the body. The Licensee guarantees that he/she will use the Game exclusively for a reasonable time, with breaks for rest or other measures for the prevention of physical condition if such are recommended or prescribed to the Licensee.

8. 被许可方的义务

Obligations of the Licensee

8.1 被许可方应:

The Licensee shall:

8.1.1 无限制地遵守本协议及游戏规则的条款;

to abide by the terms of this Agreement, including the Rules of the Game, without any restrictions;

8.1.2 在游戏网站注册时提供准确的信息;

provide accurate information at the time of registration on the Games Website;

8.1.3 不得超过本协议所规定的游戏使用限制;

not exceed the limits of the use of the Game as set in this Agreement;

- 8.1.4 不得以任何方式侵犯许可方在游戏和/或游戏部分中享有的知识产权，特别是被许可方不得未经许可方书面同意复制、广播、发送、发布、分发和再生产游戏中包含的材料（文字、图形、音视频）；
not violate in any other way the intellectual property rights of the Licensor in relation to the Game and/or any parts of the Game, in particular, the Licensee shall not copy, broadcast, send, publish, and otherwise distribute and reproduce materials (text, graphics, audio-video) contained in the Game without the written consent of the Licensor;
- 8.1.5 独立采取适当措施确保其在游戏中的账户安全，并防止第三方未经授权使用这些账户；
independently take appropriate measures to ensure the security of its Accounts in the Game and prevent unauthorized use by third parties of these Accounts;
- 8.1.6 根据许可方的要求，在本协议的签订和执行过程中确认其数据，包括姓氏、名字、中间名和其他数据；
confirm its data including the last name, first name, middle name, other data at the request of the Licensor in connection with the conclusion and implementation of this Agreement;
- 8.1.7 遵守本协议和游戏规则所规定的其他要求和义务。
comply with other requirements and fulfill other obligations provided for by this Agreement and the Game Rules.

- 8.2 被许可方保证具有进入本协议所必需的所有权力。如果被许可方未达到法定年龄（18 岁）或由于当前法律规定的其他情况完全失能，他必须自行从父母或法定代表处获得所需的法律形式批准。

The Licensee warrants that it has all the necessary powers to enter into this Agreement. In the event that the Licensee has not reached the age of majority (18 years of age) or has become completely incompetent due to another circumstances stipulated by the current legislation, he must independently obtain the necessary permission in the form required by law from his parents or legal representatives.

- 8.3 被许可方的其他义务在游戏规则和本协议第 7 节中有所规定。

Other obligations of the Licensee are stipulated in the Game Rules, as well as in the Section 7 of this Agreement.

9. 非激活数据和命令的使用权

Rights to use non-activated data and commands

- 9.1 本协议的本节规定了许可方授予被许可方使用非激活数据和命令的程序和条件。

This section of the Agreement regulates the procedure and conditions for the Licensor to grant the Licensee the Right to use non-activated data and commands.

- 9.2 根据被许可方的选择，许可方授予被许可方使用非激活数据和命令的权利。

At the Licensee's option, the Licensor grants Licensee the Right to use non-activated data and commands.

非激活数据和命令的使用权以有偿基础（作为报酬）授予被许可方，条件是简单的非独占许可证。

The Right to use non-activated data and commands is granted to the Licensee on a reimbursable basis (for the Remuneration) under the conditions of a simple non-exclusive license.

在根据协议约定支付报酬后，即在许可方将游戏内价值以游戏内货币的形式反映在被许可方账户中之后，被许可方获得使用非激活数据和命令的权利。

The Licensee obtains the Right to use non-activated data and commands after the making the Remuneration stipulated by the Agreement, namely after the Licensor reflects the in-game values in the form of the in-game currency of the Game in the Licensee's Account in the Game.

非激活数据和命令的使用权授予被许可方在本协议有效期内，除非该权利因其他原因提前终止，包括与游戏情景的实施相关。

The Right to use non-activated data and commands is granted to the Licensee for the term of this Agreement, if such right is not terminated earlier, including in connection with the implementation of the Game scenario.

报酬金额可以由许可方单方面在任何时候进行变更，无需事先通知被许可方。被许可方意识到，在使用游戏过程中，许可方有权出于任何原因拒绝使用被许可方的权利，包括使用非激活数据和命令的权利，并且这并不赋予被许可方要求许可方退还先前支付报酬的权利，除非适用法律另有明确规定。

The amount of the Remuneration may be changed by the Licensor unilaterally at any time without prior notice to Licensee. The Licensee is aware that during the use of the Game the Licensor has the right to refuse to use the Licensee's rights, including the right to use non-activated data and commands, for any reason, and this does not give the Licensee the right to require the Licensor to return the previously paid Remuneration, unless otherwise expressly provided by applicable law.

9.3 在注册被许可方账户以使用游戏时，许可方将自动创建与被许可方账户直接关联的被许可方个人账户

When registering the Licensee's Account for the use of the Game, the Licensor automatically creates the Licensee's personal account which is linked directly to the Licensee's Account.

9.4 充值个人账户的程序以及通过支付系统进行报酬支付的方法和条件由许可方在游戏网站 <https://florr.io> 上公布。被许可人通过支持的支付系统向许可人账户转账。游戏网站提供可用支付系统的列表。

The procedure for replenishing a personal account, as well as the methods and conditions for making a Remuneration through payment systems, are published by the Licensor on the Games website: <https://florr.io>. The transfer of funds is carried out by the Licensee through supported payment systems to the Licensor's account. A list of available payment systems is available on the Game Website.

9.5 通过支付报酬，被许可方承诺遵循订单和支付方式的支付指示，包括发送短信消息和短信中的数字的规则，包括大写和小写字母、数字和输入语言的顺序。对于被许可方正确履行支付条款，许可方不承担责任。关于使用支付系统为个人账户充值的规则和程序，被许可方应咨询持有此类支付系统的法人实体。许可方不提供有关使用此类支付系统的规则和程序的解释，也不向被许可方支付因通过支付系统违反规则而支付给被许可方作为许可使用非激活数据和命令的报酬的款项的赔偿，如果此类支付违反支付系统规定，导致款项未被许可方收到。

By paying the Remuneration the Licensee undertakes to follow the payment instructions for the order and methods of payment, including the rules for sending the messages and the numbers in short text messages (SMS), including the order of entering uppercase and lowercase letters, numbers and input language. The Licensor shall not be liable for the correct fulfillment of the payment terms by the Licensee. Regarding the rules and procedures for using payment systems for replenishment of a personal account, the Licensee should apply to legal entities holding such payment systems. The Licensor does not give the Licensee explanations on issues related to the rules and procedures for using such payment systems and also does not pay to the Licensee compensation for money paid as a license Remuneration for the Right to use non-activated data and commands through payment systems if such payments were made with violation of the rules established by payment systems as a result of which funds were not received by the Licensor.

9.6 在收到报酬确认前，许可方无权授予被许可方使用未激活数据和命令的权利，或者以有限的方式授予此类权利。

Prior to receiving confirmation of the payment of the Remuneration, the Licensor shall not be entitled to grant Licensee the Right to use non-activated data and commands or to grant such right to a limited extent.

- 9.7 如果由于技术错误、游戏故障或被许可方故意行为，被许可方可能以不符合本协议规定的程序使用未激活的数据和命令，被许可方应当立即通知许可方，并支付报酬或消除非法使用未激活数据和命令所带来的后果。许可方有权在未通知被许可方的情况下消除这些后果。

In the event of technical error, malfunctioning of the Game, deliberate action by the Licensee it was possible for the Licensee to use non-activated data and commands not in accordance with the procedure established by this Agreement, the Licensee undertakes to notify the Licensor and pay the Licensor the Remuneration or eliminate all consequences of the unlawful use of non-activated data and commands. The Licensor has the right to eliminate such consequences without notifying the Licensee.

- 9.8 被许可方有义务在使用游戏期间保存证明报酬支付的文件，并在许可方要求时提供这些文件，以及提供关于报酬支付履行情况的信息。

The Licensee is obliged to keep the documents confirming the payment of the Remuneration during the entire period of use of the Game by the Licensee and, upon the request of the Licensor, provide such documents to the latter as well as provide information on the circumstances of the fulfillment of such payment by the Licensee.

- 9.9 被许可方必须自行监控个人账户的状态。

The Licensee must independently monitor the status of his personal account.

- 9.10 游戏的独家分发和使用权属于许可方，因此任何第三方提供的未激活数据和命令使用权的提议都不能被被许可方视为来自许可方的提议。

The exclusive right to distribute and use the Game belongs to the Licensor, and therefore no third party offers for granting the right to use non-activated data and commands can be regarded by the Licensee as proposals originating from the Licensor.

如有争议、不明确的情况，或者有关支付未激活数据和命令使用权报酬的第三方提供的任何提议的情况，被许可方应立即通知许可方，除非是在许可方的资源上发布的以及代表许可方发布的广告和提议。

The Licensee shall immediately notify the Licensor in the event of disputable, unclear situations or about sending to the Licensee any offers of third parties related to the payment of the Remuneration for the right to use non-activated data and commands, or the posting of such advertisements and proposals on the Internet, with the exception of the Licensor's Resources and placed on behalf of the Licensor.

如果被许可方违反本条款而使用了这样的公告所指定的详细信息进行支付，那么被许可方对于未激活数据和命令使用权的要求将不被接受，许可方也不会对被许可方在此情况下花费的金额进行赔偿。

In the event that the Licensee has paid for the said announcement using the details specified in such an announcement in violation of these terms, the Licensee's claims to the Licensor regarding the Licensee's lack of the Right to use non-activated data and commands are not accepted, and the Licensor does not compensate the Licensee for money spent by the Licensee under such circumstances.

- 9.11 如果许可方确定被许可方能够使用第三方的未激活数据和命令，许可方可以自行决定暂停或限制本协议的执行。

In the event that the Licensor determines that the Licensee is able to use non-activated data and commands from third parties, the Licensor may, at its discretion, either suspend or restrict the operation of the Agreement.

- 9.12 被许可方获得使用未激活数据和命令的权利并不免除被许可方遵守本协议和游戏规则的义务，以及适用于被许可方的在本协议或游戏规则中规定的措施。

The receipt by the Licensee of the Right to use non-activated data and commands does not release the Licensee from compliance with this Agreement and the Game Rules and from applying to her/him any measures specified in this Agreement or in the Game Rules.

- 9.13 许可方对于被许可方在支付未激活数据和命令使用权报酬过程中可能进行的非法行为不承担责任。在澄清事态之前, 许可方保留单方面撤销游戏许可证(终止使用游戏的权利) 和/或未激活数据和命令使用权的权利, 如果有对被许可方进行非法行为的怀疑。

The Licenser is not liable for possible unlawful actions of the Licensee during the payment of the Remuneration for the Right to use non-activated data and commands. Up to clarification of the circumstances the Licenser reserves the right to unilaterally withdraw the game license (terminate the right to use the Game) and (or) the Right to use non-activated data and commands if there is a suspicion that Licensee committed unlawful acts.

- 9.14 如果许可方有理由相信被许可方在支付未激活数据和命令使用权报酬方面进行了非法行为, 许可方有权将相关信息转交给执法机关以核实此事实。

In the event that the Licenser has reason to believe that the Licensee commits unlawful acts related to the payment of the Remuneration for the Right to use non-activated data and commands, the Licenser has the right to forward relevant information to law enforcement agencies for verification of this fact.

- 9.15 使用银行卡支付未激活数据和命令使用权报酬的方面:

Aspects of payment by the Licensee of the Remuneration for the Right to use non-activated data and commands via bank cards:

- 9.16 银行卡上的操作由持卡人或其授权人进行。

Operations on bank cards are made by the card holder or by the person authorized by him.

- 9.16.1 银行对银行卡上的交易进行授权。如果银行有理由认为交易是非法的, 银行有权拒绝执行此交易。使用银行卡进行欺诈交易是违法行为。

Authorization of transactions on bank cards is carried out by the bank. If the bank has reason to believe that the operation is illegal, the bank has the right to refuse to carry out this operation. Fraudulent transactions with bank cards are a criminal offense.

- 9.16.2 为了防止使用银行卡进行欺诈支付, 许可方可以对使用银行卡支付的款项进行验证。持有该银行卡的被许可方应根据许可方的要求提供所需的文件副本, 以确认合法使用该银行卡。如果被许可方在支付之日起 14 天内未提交请求的文件, 或者对文件的真实性存在疑虑, 许可方可以暂停被许可方使用游戏的权利, 直至事态明朗。

In order to avoid fraud when paying with bank cards, payments paid by a bank card can be checked by the Licenser. The Licensee that is holder of the card that issued such payment shall provide a copy of the documents required by the Licenser upon request from the Licenser to confirm the legitimate use of the bank card. In the event that the requested documents are not submitted by the Licensee within 14 days from the date of payment or if there are doubts about their authenticity, the Licenser may suspend the Licensee's rights to use the Game until the circumstances become clear.

- 9.17 被许可方应自行承担与向许可方转账相关的一切费用, 包括银行和支付系统运营商的各种费用和佣金。

The Licensee shall bear all costs associated with the transfer of funds to the Licenser independently and at its own expense, including various fees and commissions of banks and payment system operators.

- 9.18 被许可方同意、理解并接受游戏不是一种游戏机会、赌博、竞赛或投注。获取未激活数据和命令使用权的许可是被许可方自愿的意愿, 并不是根据本协议规定的任何方式使用游戏所必需的。

The Licensee agrees, understands and accepts the fact that the Game is not a game of chance, a game for money, a contest, a bet. Acquisition of a license for the Right to use non-activated data and commands is the realization of Licensee's own will and desire and is not necessary or mandatory for the use of Game in any way stipulated in this Agreement.

10. 领土和协议期限

Territory and term of the Agreement

10.1 在协议规定的方式下，被许可方有权在游戏功能范围内使用游戏，利用标准计算机工具和程序，在全球范围内使用。

The Licensee has the right to use the Game in the ways described in this Agreement, throughout the territory of the whole world using standard computer tools and programs within the framework of the Game functionality.

10.2 本协议自被许可方接受协议条款之时起生效，有效期为 1（一）个日历年。

This Agreement is valid from the moment of acceptance of its terms by the Licensee and is valid for 1 (one) calendar year.

10.3 本协议的有效期如下情况下会自动延长 1（一）年：

The validity of this Agreement is automatically extended for each subsequent 1 (one) year if in case the earlier expiration of the specified term of the Agreement:

10.3.1 许可方不决定更改本协议的规定，需要与被许可方订立新协议、终止游戏服务及终止对其访问、终止与被许可方的协议或终止对其访问游戏；

the Licensor does not decide to change the provisions of this Agreement, the need to conclude a new agreement with Licensees, terminate Game services and terminate access to it, terminate this Agreement with respect to the Licensee, or terminate access to the Game in relation to the Licensee.

10.3.2 被许可方不决定终止对游戏的使用。

the Licensee will not decide on termination of the use of the Game.

10.4 除非适用法律另有明确规定，许可方可以随时在未通知被许可方且无需给出理由的情况下单方面终止本协议，立即终止访问和使用游戏，并不退还任何费用、损害赔偿或根据协议获得的退款，包括但不限于以下情况：

Unless otherwise expressly provided by applicable law, the Licensor may at any time, without notifying the Licensee and without giving reasons, terminate this Agreement unilaterally out of court with immediate termination of access and the ability to use the Game and without refunding any costs, damages or refunds received under the Agreement, including in the case of:

10.4.1 游戏终止，即许可方终止其运营；

termination of the Game, i.e. termination of its operation by the Licensor;

10.4.2 被许可方违反本协议或游戏规则的任何一次或多次。

any, including one-time, violation by the Licensee of the terms of this Agreement or the Game Rules.

10.5 除非适用法律另有明确规定，许可方可以随时在未通知被许可方且无需说明理由的情况下暂停或终止本协议，不退还任何费用、损害赔偿或根据协议获得的退款，包括但不限于被许可方违反本协议或游戏规则的情况。

The Licensor may at any time without notice to the Licensee and without explanation of reasons suspend or terminate this Agreement without refunding any costs, damages or refund received under the Agreement, including in the event of any violation of the terms of this Agreement by the Licensee or the Rules of the Game, unless otherwise expressly provided for by applicable law.

10.6 被许可方可以随时在未通知许可方且无需说明理由的情况下通过删除被许可方账户单方面终止本协议。

The Licensee may at any time, without notifying the Licensor and without giving reasons, terminate this Agreement unilaterally out of court by deleting the Licensee's Account.

- 10.7被许可方同意并充分了解，对于本地化（翻译为相应语言）的游戏，包括游戏角色、游戏物品和配件、游戏币、游戏价值、图形、照片、动画、视频图像、视频剪辑、声音录音、音频效果、音乐、游戏文本内容以及游戏的其他组成部分，所有专有权利归许可方所有，除非本协议、游戏网站或游戏本身中明确另有规定。

The Licensee agrees and fully acknowledges that all exclusive rights to a localized (translated into appropriate language) Game, including game characters, game items and accessories, game coins, in-game values, graphics, photographs, animations, video images, video clips, sound recordings, audio effects, music, text content of the Game and other components of the Games belong to the Licensor, unless explicitly stated otherwise in the Agreement, on the Game Website or in the Game itself.

- 10.8未经许可方书面同意，被许可方不得在游戏之外使用游戏的某些元素。

The Licensee may not use certain elements of the Game outside the Game without the Licensor's written consent.

- 10.9被许可方理解、接受并同意，游戏的任何元素，尤其是游戏角色，都是作为计算机程序的组成部分，并受版权保护。虽然被许可方获得了使用激活数据和命令的权利，且可以在使用游戏的过程中获得使用未激活数据和命令的权利，但对这些游戏角色的管理是允许的，包括在游戏情节中发展这些角色，但这种管理和角色发展在任何情况下都不能被视为许可方向被许可方转让和/或转让给该游戏角色的独占权利。这样的角色管理和发展也不能被视为被许可方对游戏角色的原创以及被许可方与许可方在游戏角色方面的共同创作。

The Licensee understands, accepts and agrees that any element of the Game, in particular any game characters, is a constituent part of the Game as a computer program and is protected by copyright. Although the Licensee is granted the right to use activated data and commands and the Right to use non-activated data and commands may be granted in the process of using the Game, the management of such game characters is allowed, including the development of such characters in the Game scenario, such management and character development is not and can not be regarded under any circumstances as a transfer and/or assignment of an exclusive right in relation to the given game character from the Licensor to the Licensee. Such character management and development is also not and can not be regarded as the authorship of the Licensee in relation to the game character and/or the co-authorship of the Licensee and the Licensor with respect to the game character.

- 10.10 本协议不授予任何游戏组件和/或游戏资源的独占权或独占许可的转让（转让、让与）给被许可方，也不授予被许可方使用游戏的权利。

This Agreement does not provide for the assignment (transfer, alienation) of any exclusive rights or the issuance of an exclusive license for any components of the Game and/or Game Resources from the Licensor to the Licensee as well as the assignment by Licensee of the rights to use the Game.

- 10.11 如果根据其所在国家的法律禁止被许可方在线使用计算机游戏，或存在其他法律限制，包括对接受此类软件的年龄限制，被许可方不能使用游戏。在这种情况下，被许可方独自承担违反当地法律在其国家境内使用游戏的责任。

In the event that the Licensee is not allowed to use computer games online on the basis of the laws of his state or there are other legal restrictions, including age limits for admission to such software, Licensee may not use the Game. In this case, the Licensee is solely responsible for using the Game on the territory of its state in violation of local law.

- 10.12 许可方可以随时更改本协议而无需事先通知。许可方单方面对协议进行的任何修改将在协议更改发布于游戏网站的次日生效。被许可方承诺独立核查协议的变更内容。被许可方未阅读协议和/或修改后的协议版本不能成为被许可方不履行其义务以及违反协议中规定限制的依据。

This Agreement may be changed by the Licensor without any prior notification. Any changes to the Agreement made by the Licensor unilaterally come into force on the day following the day of publication of such changes on the Game Website. The Licensee undertakes to independently verify the Agreement for changes. Failure by the Licensee to familiarize herself/himself with the Agreement and/or the amended version of the Agreement shall not serve as a basis for the Licensee's failure to fulfill its obligations and the Licensee's failure to comply with the restrictions set forth in the Agreement.

- 10.13 协议的一个或多个条款因经过已生效的法院判决而被认定为无效，并不导致整个协议对各方无效。如果一个或多个协议条款按照规定程序被认定为无效，各方将尽力履行协议所承担的义务，以与各方在订立和/或协调修改协议时所预期的方式尽可能接近。

The invalidity of one or more provisions of the Agreement, recognized in due course by a court decision that has entered into force, does not entail invalidity of the Agreement as a whole for the Parties. If one or several provisions of the Agreement are recognized invalid in the established procedure, the Parties undertake to fulfill the obligations undertaken by the Agreement as close as possible to the manner the Parties has implied when concluding and/or coordinating the amendment of the Agreement.

- 10.14 与协议执行有关的问题，请联系许可方：
电子邮件：support@m28.io。

For questions related to the implementation of the Agreement, please contact the Licensor:
Email: support@m28.io

此为《最终用户许可协议》的 ChatGPT 机翻版本。所有内容仅供查看，不保证其翻译结果之准确性，所有内容以位于 <https://florr.io/tos.txt> 的英文原文为准。

最后修订于 2023 年 12 月 17 日 15:00。（北京时间）